

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cassandra Fenkel	Team: Squad #10	CCRB Case #: 201602104	☒ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 03/08/2016 2:05 PM	Location of Incident: 41st Precinct stationhouse	Precinct: 41	18 Mo. SOL 9/8/2017	EO SOL 9/8/2017	
Date/Time CV Reported Tue, 03/08/2016 2:49 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 03/14/2016 2:35 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Matthew Kuhl	08652	950709	041 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Brittney Saxon	01707	949630	041 PCT
2. POF Jennifer Kennedy	27409	938760	041 PCT
3. SGT Yanet Cooper	3016	943023	041 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Matthew Kuhl	Force: Police Officer Matthew Kuhl used physical force against § 87(2)(b)	

Case Summary

On March 8, 2016, Sgt. Yanet Cooper of the 41st Precinct contacted the IAB Command Center to make a notification on behalf of § 87(2)(b) a prisoner injured while in police custody. The case was received at the CCRB on March 14, 2016, via IAB log #16-8333 (Board Review 1).

On March 8, 2016, at approximately 1:58 p.m. § 87(2)(b) entered into § 87(2)(b)'s place of business in the area of § 87(2)(b) in the Bronx, and allegedly urinated on the floor. § 87(2)(b) informed § 87(2)(b) that he could not do such a thing, and § 87(2)(b) allegedly began to physically fight with § 87(2)(b). PO Brittney Saxon and PO Jennifer Kennedy arrived at the location, and § 87(2)(b) was arrested by PO Saxon on a top charge of assault with intent to cause physical injury (Board Review 2). PO Saxon and PO Kennedy transported § 87(2)(b) to the 41st precinct stationhouse. PO Saxon and PO Kennedy parked their vehicle in the rear parking lot, and attempted to walk § 87(2)(b) into the rear doors of the 41st precinct stationhouse. § 87(2)(b) refused to walk inside of the stationhouse and began to physically struggle with PO Saxon and PO Kennedy. PO Matthew Kuhl assisted PO Kennedy and PO Saxon with bringing § 87(2)(b) into the stationhouse. As PO Kuhl pushed § 87(2)(b) into the stationhouse, § 87(2)(b)'s head collided with a glass windowpane in the rear stationhouse doors (**Allegation A**). As a result of § 87(2)(b)'s head hitting the windowpane, it shattered and caused lacerations § 87(2)(b)'s face. PO Kuhl also sustained an abrasion to his right eye and right hand. There is no video footage of this incident.

Mediation, Civil, and Criminal Histories

- As a result of § 87(2)(b)'s arrest without a desk appearance ticket, this complaint was unsuitable for mediation.
- § 87(2)(b) has not filed a notice of claim regarding the incident (Board Review 3).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint involving § 87(2)(b) (Board Review 5).
- PO Kuhl has been a member of service for 4 years and has had 3 prior CCRB complaints filed against him involving 3 allegations, none of which have been substantiated or contain patterns applicable to this case (Board Review 6).

Findings and Recommendations

Allegation A – Police Officer Matthew Kuhl used physical force against § 87(2)(b)

It is undisputed that an intoxicated § 87(2)(b) was non-compliant with entering the 41st precinct stationhouse, and that § 87(2)(b) sustained facial lacerations after his head collided with a glass windowpane.

In his CCRB testimony, § 87(2)(b) acknowledged that he was drinking prior to his interaction with PO Saxon and PO Kennedy. About an hour prior to his arrest, § 87(2)(b) shared a flask size bottle of Baca, a type of liquor, with a friend. § 87(2)(b) described that he was arrested after he got into a fight, and denied that he sustained any injuries in the fight. After his arrest, PO

Kennedy and PO Saxon transported § 87(2)(b) to the 41st precinct stationhouse. PO Kennedy and PO Saxon attempted to walk § 87(2)(b) into the rear doors of the 41st precinct stationhouse by standing on each side of him and holding onto § 87(2)(b) by his left and right arm. PO Kennedy and PO Saxon walked § 87(2)(b) at a brisk pace, and § 87(2)(b) told them to “take it easy.” § 87(2)(b) acknowledged that he stopped briefly and pushed his upper body back. Aside from this, § 87(2)(b) denied that he made any other movements with his body. Seemingly out of nowhere, PO Kuhl appeared and came up behind § 87(2)(b). Neither PO Kuhl, PO Saxon, or PO Kennedy said anything to § 87(2)(b) and PO Kuhl pushed on the back of § 87(2)(b)'s head and forcefully pushed § 87(2)(b)'s head through a glass windowpane located in the rear doors of the 41st precinct stationhouse. As a result, § 87(2)(b) sustained lacerations to his face. At the time of his CCRB interview, § 87(2)(b) described that he had visible facial scars from this incident (Board Review 7). As depicted in photographs taken at the CCRB interview, § 87(2)(b) had visible scarring to his forehead and left cheek which he alleged was as a result of his contact with the windowpane (Board Review 8, Board Review 9). § 87(2)(b)'s arrest photograph also depicted multiple lacerations to § 87(2)(b)'s forehead and left cheek (Board Review 10).

As a result of his injuries, § 87(2)(b) was transported to § 87(2)(b). § 87(2)(b)'s medical records document multiple abrasions to his face, and his official diagnosis was “assault by other sharp object” resulting in head trauma. § 87(2)(b) described that a male officer “mushed” his face into a glass door, which resulted in lacerations to his face. § 87(2)(b)'s medical records also corroborated § 87(2)(b)'s acknowledgement that he had been drinking on the date of the incident, and referenced § 87(2)(b)'s extensive history of incarceration and substance abuse (see privileged medical records folder).

PO Kuhl testified that the date of the incident was his first day in his new command, Bronx Narcotics. PO Kuhl had returned to the 41st precinct stationhouse, his previous command, in order to clean out his locker. Upon his arrival at the 41st precinct stationhouse, PO Kuhl observed PO Kennedy and PO Saxon struggling to bring § 87(2)(b) into the stationhouse. As PO Kennedy attempted to bring § 87(2)(b) out of the police vehicle, § 87(2)(b) who was visibly intoxicated as evidenced by the smell of alcohol, his watery eyes, and open fly, yelled, spit, and flailed his entire body from left to right. PO Saxon and PO Kennedy each grabbed onto one of § 87(2)(b)'s arms, and walked § 87(2)(b) to the stationhouse doors while § 87(2)(b) continued to yell, spit, and flail his body. § 87(2)(b) kicked at the stationhouse doors, which caused PO Kennedy and PO Saxon to lose their grip on § 87(2)(b). At this moment, PO Kuhl decided to assist. PO Kuhl grabbed onto § 87(2)(b) though he could not recall specifically where. § 87(2)(b) continued to flail his body from left to right, and as § 87(2)(b) flailed his body around, § 87(2)(b)'s head went through the glass windowpane of the stationhouse door, and the windowpane broke around § 87(2)(b)'s head. PO Kuhl denied that he pushed on § 87(2)(b)'s head, and denied that he used any physical force which caused § 87(2)(b)'s head to collide with the windowpane. § 87(2)(b) began to bleed from the forehead, and PO Kuhl physically removed § 87(2)(b)'s head from the windowpane. As a result of his own contact with the windowpane, PO Kuhl sustained a cut to his right hand, verified by an AIDED report prepared for the incident. PO Kuhl did not change his duty status as a result of his injury (Board Review 10, Board Review 11).

PO Kennedy and PO Saxon corroborated PO Kuhl's account that they struggled to bring § 87(2)(b) into the 41st precinct stationhouse. PO Kennedy and PO Saxon both testified that § 87(2)(b) pulled away from PO Kennedy when she attempted to grab his arm to escort him into the stationhouse. PO Saxon assisted by grabbing onto § 87(2)(b)'s right arm as PO Kennedy held § 87(2)(b)'s left arm, and the officers walked him towards the stationhouse doors. PO Kennedy testified that upon reaching the doors, § 87(2)(b) declared he was not going inside. § 87(2)(b) put his left foot on the stationhouse doors, and ignored PO Saxon and PO Kennedy's instructions to

put his foot down and stop resisting. PO Saxon and PO Kennedy attempted to push § 87(2)(b) by his back, but § 87(2)(b) pushed his body backwards towards the officers and would not remove his foot from the door. PO Kuhl intervened to assist, and pushed § 87(2)(b) by his back to move him from the initial set of double doors into a second set of double doors ultimately leading into the stationhouse. In the moment that PO Kuhl pushed § 87(2)(b) § 87(2)(b)'s foot came off the door and this momentum sent both § 87(2)(b) and PO Kuhl flying into the second set of double doors. § 87(2)(b)'s face collided with the glass windowpane of the door, and the glass shattered (Board Review 12).

PO Saxon testified that as she and PO Kennedy reached the doors to the 41st precinct stationhouse, § 87(2)(b) forcefully pushed his upper body backwards against the officers. PO Kuhl appeared, and grabbed § 87(2)(b) by the right arm, at which point, PO Saxon and PO Kennedy released their grip on § 87(2)(b) § 87(2)(b) continued to push his body away from PO Kuhl, and kicked at the stationhouse doors. As this was happening, PO Saxon was occupied by entering a code onto a keypad, a necessary step to open the door leading into the stationhouse. As she entered the code, PO Saxon heard a smash and observed that § 87(2)(b)'s head had gone through the glass windowpane of the stationhouse door. PO Saxon did not observe what caused § 87(2)(b)'s head to collide with the windowpane (Board Review 13).

Sgt. Cooper, assigned at the desk sergeant, testified that her attention was drawn to the incident when she heard the sounds of an indescribable commotion coming from the rear stationhouse doors. When Sgt. Cooper looked towards the commotion, she observed § 87(2)(b)'s head collide with a glass windowpane in the stationhouse door. Sgt. Cooper did not know what caused § 87(2)(b)'s head to collide with the windowpane, and did not see what occurred with § 87(2)(b) prior to this point (Board Review 14).

Regarding § 87(2)(b)'s injuries, PO Kuhl did not notice if § 87(2)(b) had facial injuries prior to his contact with the stationhouse door. PO Kuhl only observed blood coming from § 87(2)(b)'s forehead. Sgt. Cooper observed blood on § 87(2)(b)'s head, but could not discern where it was originating from. PO Kennedy testified that § 87(2)(b) sustained a laceration to his forehead as evidenced by blood emanating from the center of § 87(2)(b)'s forehead after his collision with the door. PO Saxon described that § 87(2)(b) sustained abrasions to his upper left forehead area from his contact with the glass windowpane, and abrasions to his middle forehead area, left eyebrow area, and left cheek area as a result of the physical altercation with § 87(2)(b). PO Kennedy corroborated PO Saxon's account that § 87(2)(b) had an injury to his head as a result of his fight with § 87(2)(b) but could not describe this injury in more detail (see statements of PO Kuhl, PO Kennedy, PO Saxon, and Sgt. Cooper).

In a phone statement with the CCRB, § 87(2)(b) corroborated that § 87(2)(b) had facial injuries prior to his arrival at the 41st precinct stationhouse. § 87(2)(b) acknowledged that he engaged in a physical struggle with § 87(2)(b) but denied that any of his actions caused facial injuries. Upon the arrival of PO Kennedy and PO Saxon, § 87(2)(b) pointed § 87(2)(b) out to the officers, at which point he observed injuries to § 87(2)(b)'s face and bleeding from his forehead. § 87(2)(b) appeared to be with friends and drinking, and § 87(2)(b) had no idea how § 87(2)(b)'s injuries were sustained (Board Review 15).

A UF-49 prepared after the incident by Deputy Inspector Martine Materasso provided the following details. In the UF-49, PO Kuhl testified that after he grabbed onto § 87(2)(b) § 87(2)(b) tripped, which propelled both him and PO Kuhl to fall into the stationhouse doors. Sgt. Cooper consistently described that she did not see any officers' interactions with § 87(2)(b) prior to his contact with the stationhouse door. PO Kennedy and PO Saxon each testified PO Kuhl assisted with bringing § 87(2)(b) into the stationhouse, at which point an undescribed struggle ensued,

during which both § 87(2)(b) and PO Kuhl fell into the stationhouse doors, causing the glass to shatter (Board Review 16).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date